

1 ENGROSSED HOUSE  
2 BILL NO. 4326

By: Moore, Archer and Deck of  
the House

3 and

4 Seifried and Bullard of the  
5 Senate

6  
7 An Act relating to the Oklahoma Higher Learning Access Program;  
8 amending 70 O.S. 2021, Section 2603, as last amended by Section 1,  
9 Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which  
10 relates to eligibility requirements; adding technology center school  
11 education to eligibility; updating references; expanding eligibility  
12 for students in the court-ordered custody of a private nonprofit  
13 child-placing agency or a federally recognized Indian tribe during  
14 certain time; defining who a parent is for a child of a certified  
15 teacher; amending 70 O.S. 2021, Section 2605, as last amended by  
16 Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section  
17 2605), which relates to student agreements; updating references;  
18 expanding eligibility for students in the court-ordered custody of a  
19 private nonprofit child-placing agency or a federally recognized  
20 Indian tribe during certain time; removing income requirement for  
21 student in the custody of the Oklahoma Department of Human Services,  
22 in the court-ordered custody of a private nonprofit child-placing  
23 agency, or a federally recognized Indian tribe during certain time;  
24 requiring Oklahoma State Regents for Higher Education verify  
standard or alternative certificate is in a classroom subject;  
expanding definition of certified teacher; clarifying computation of  
employment for purposes of eligibility; requiring standard or  
alternative certification be in a classroom subject as determined by  
the State Regents; clarifying effect of service as an emergency or  
provisionally certified teacher; increasing financial need  
qualification threshold amount on or after certain school year;  
amending 62 O.S. 2021, Section 34.87, as amended by Section 1,  
Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025, Section 34.87), which  
relates to the transfer of funds to the Higher Learning Access Trust  
Fund; requiring certain calculations utilizing certain  
methodologies; requiring certain calculated amounts be reported to  
certain Boards; clarifying transfer determination; providing an  
effective date; and providing a conditional effective date.

1  
2 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

3 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as  
4 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.  
5 2025, Section 2603), is amended to read as follows:

6 Section 2603. A. Except as otherwise provided for in  
7 subsection B of this section and elsewhere in this section, to be  
8 eligible to participate in the Oklahoma Higher Learning Access  
9 Program and to qualify for an award which includes payment of an  
10 amount equivalent to resident tuition or other tuition pursuant to  
11 Section 2604 of this title for the first semester or other academic  
12 unit of postsecondary enrollment, a student shall:

13 1. Be a resident of this state or be enrolled in a school  
14 district located in this state that serves students who reside in  
15 both this state and an adjacent state pursuant to a contract as  
16 authorized in Section 5-117.1 of this title;

17 2. Be a United States citizen or lawfully present in the United  
18 States. A student who is not a United States citizen or lawfully  
19 present in the United States shall not be eligible to participate in  
20 the Oklahoma Higher Learning Access Program and to qualify for an  
21 award notwithstanding the provisions of Section 3242 of this title.  
22 The provisions of this paragraph shall not apply to any student who  
23 was enrolled in the Oklahoma Higher Learning Access Program prior to  
24 the end of the 2006-2007 school year;

1       3. Have a record of satisfactory compliance with agreements  
2 executed pursuant to Section 2605 of this title;

3       4.     a.     Have graduated within the previous three (3) years  
4               from a high school accredited by the State Board of  
5               Education or the Oklahoma School of Science and  
6               Mathematics with a minimum 2.5 cumulative grade point  
7               average on a 4.0 scale for all work attempted in  
8               grades nine through twelve,

9               b.     Have graduated within the previous three (3) years  
10              from a high school not accredited by the State Board  
11              of Education with a minimum 2.5 cumulative grade point  
12              average on a 4.0 scale for all work attempted in  
13              grades nine through twelve and have achieved a  
14              composite score of 22 or higher on the ACT test, or

15             c.     Have satisfactorily completed within the previous  
16                     three (3) years an educational program that was  
17                     provided through a means other than a public or  
18                     private school and have achieved a composite score of  
19                     22 or higher on the ACT test;

20       5. Have completed the curricular requirements for admission to  
21 an institution within The Oklahoma State System of Higher Education  
22 or have completed the core curriculum and be seeking admission to a  
23 technology center school governed by the State Board of Career and  
24 Technology Education. Students shall also have attained a 2.5 grade

1 point average in the ~~core~~ Oklahoma's Promise required curriculum  
2 courses. Students who attended a high school which did not offer  
3 all the ~~core~~ Oklahoma's Promise required curriculum courses or  
4 students who were educated by other means and were not offered all  
5 the ~~core~~ Oklahoma's Promise required curriculum courses shall be  
6 allowed to satisfy this curriculum requirement by participating in a  
7 program approved by the Oklahoma State Regents for Higher Education  
8 for remediation of high school curricular deficiencies;

9 6. Have satisfied admission standards as determined by the  
10 Oklahoma State Regents for Higher Education for first-time-entering  
11 students for the appropriate type of institution, or, if attending a  
12 private institution, have satisfied admission standards as  
13 determined by the private institution. No student participating in  
14 the Oklahoma Higher Learning Access Program shall be admitted into  
15 an institution of higher education by special admission standards;

16 7. Have secured admission to, and enrolled in, an institution  
17 which is a member of The Oklahoma State System of Higher Education,  
18 a postsecondary vocational-technical program offered by a technology  
19 center school that meets the requirements to be eligible for federal  
20 student financial aid, or a private institution of higher learning  
21 located within this state and accredited pursuant to Section 4103 of  
22 this title; and

23 8. a. Have established financial need according to the  
24 provisions of subsection D of Section 2605 of this

1 title and standards and provisions promulgated by the  
2 Oklahoma State Regents for Higher Education,

3 b. If the student was adopted between birth and twelve  
4 (12) years of age while in the permanent custody of  
5 the Oklahoma Department of Human Services, in the  
6 court-ordered custody of a ~~licensed~~ private nonprofit  
7 child-placing agency licensed by the Oklahoma  
8 Department of Human Services, or federally recognized  
9 Indian tribe, as defined by the federal Indian Child  
10 Welfare Act of 1978, have established financial need  
11 according to the provisions of paragraph 1 of  
12 subsection E of Section 2605 of this title and  
13 standards and provisions promulgated by the Oklahoma  
14 State Regents for Higher Education,

15 c. If the student was adopted between thirteen (13) and  
16 seventeen (17) years of age while in the permanent  
17 custody of the Oklahoma Department of Human Services,  
18 in the court-ordered custody of a ~~licensed~~ private  
19 nonprofit child-placing agency licensed by the  
20 Oklahoma Department of Human Services, or federally  
21 recognized Indian tribe, as defined by the federal  
22 Indian Child Welfare Act of 1978, have established  
23 financial need according to the provisions of  
24 paragraph 2 of subsection E of Section 2605 of this

- 1 title and standards and provisions promulgated by the  
2 Oklahoma State Regents for Higher Education,
- 3 d. ~~If the student was placed~~ Was in the custody of the  
4 Oklahoma Department of Human Services, in the court-  
5 ordered custody of a private nonprofit child-placing  
6 agency licensed by the Oklahoma Department of Human  
7 Services, or federally recognized Indian tribe, as  
8 defined by the federal Indian Child Welfare Act of  
9 1978, at any time during the eighth, ninth, tenth, or  
10 eleventh grade and enrolls in the program no later  
11 than his or her official date of high school  
12 graduation, ~~have established financial need according~~  
13 ~~to the provisions of paragraph 3 of subsection E of~~  
14 ~~Section 2605 of this title and~~ any additional  
15 requirements according to the standards and provisions  
16 promulgated by the Oklahoma State Regents for Higher  
17 Education, or
- 18 e. If the student is the child of a certified ~~classroom~~  
19 teacher and meets the provisions of paragraph 5 of  
20 subsection E of Section 2605 of this title. For the  
21 purposes of this paragraph, ~~"certified classroom~~  
22 ~~teacher"~~ "certified teacher" shall have the same  
23 meaning as provided in subparagraph d of paragraph 5  
24 of subsection E of Section 2605 of this title. A

certified teacher shall be considered the parent of a student if the certified teacher is the natural or adoptive parent or the permanent legal guardian of the student.

B. 1. A student shall be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment if the student meets all of the following criteria:

- a. is a child of any person killed after January 1, 2000, in the line of duty in any branch of the United States Armed Forces or who died after January 1, 2000, as a result of an injury sustained while in the line of duty in any branch of the United States Armed Forces and the person who was killed or died filed an individual or joint Oklahoma income tax return for the tax year prior to the year during which the person was killed or died,
- b. is a resident of this state or is enrolled in a school district located in this state that serves students who reside in both this state and an adjacent state pursuant to a contract as authorized in Section 5-117.1 of this title,

- 1           c.    enrolls in an institution within The Oklahoma State  
2                   System of Higher Education prior to reaching the age  
3                   of twenty-one (21),
- 4           d.    has satisfied admission standards as determined by the  
5                   Oklahoma State Regents for Higher Education for first-  
6                   time-entering students for the appropriate type of  
7                   institution, or, if attending a private institution,  
8                   has satisfied admission standards as determined by the  
9                   private institution. No student participating in the  
10                  Oklahoma Higher Learning Access Program shall be  
11                  admitted into an institution of higher education by  
12                  special admission standards,
- 13          e.    has secured admission to, and enrolled in, an  
14                  institution which is a member of The Oklahoma State  
15                  System of Higher Education, a postsecondary  
16                  vocational-technical program offered by a technology  
17                  center school that meets the requirements to be  
18                  eligible for federal student financial aid, or a  
19                  private institution of higher learning located within  
20                  this state and accredited pursuant to Section 4103 of  
21                  this title, and
- 22          f.    executes an agreement pursuant to subsection C of  
23                  Section 2605 of this title.
- 24



1        2. A student who is eligible to participate in the program  
2 pursuant to this subsection shall not be required to meet the  
3 eligibility requirements set forth in subsection A of this section.

4        C. To retain eligibility while pursuing the program of higher  
5 learning in which enrolled, the student shall:

6            1. Meet the requirements for retention and degree completion as  
7 established by the institution in which the student is enrolled;

8            2. Maintain good academic standing and satisfactory academic  
9 progress according to standards of the Oklahoma State Regents for  
10 Higher Education;

11           3. Maintain satisfactory academic progress as required for  
12 eligibility for federal Title IV student financial aid programs.  
13 The provisions of this paragraph shall become effective for the  
14 2012-2013 school year;

15           4. Comply with the standards related to maintenance of  
16 eligibility as promulgated by the Oklahoma State Regents for Higher  
17 Education; and

18           5. Refrain from conduct that leads to expulsion or suspension  
19 of more than one semester from an institution of higher education.  
20 A student who violates the provisions of this paragraph shall  
21 permanently lose eligibility for program benefits. The provisions  
22 of this paragraph shall become effective January 1, 2008.

23        D. The Oklahoma State Regents for Higher Education and the  
24 State Board of Career and Technology Education shall promulgate

1 rules relating to maintenance of eligibility under the Oklahoma  
2 Higher Learning Access Act by a student.

3 E. It is the intent of the Legislature that students in the  
4 ninth grade for the 1992-93 school year who are determined to be  
5 eligible Oklahoma Higher Learning Access students pursuant to the  
6 Oklahoma Higher Learning Access Act shall be the first students  
7 eligible for benefits from the Oklahoma Higher Learning Access Trust  
8 Fund.

9 F. The Oklahoma State Regents for Higher Education are  
10 authorized to study, develop, and propose criteria for determining  
11 award eligibility based upon the completion of seven semesters of  
12 high school coursework by a student.

13 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as  
14 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.  
15 2025, Section 2605), is amended to read as follows:

16 Section 2605. A. Each school year, every fifth- through  
17 eleventh-grade student in the public and private schools of this  
18 state and students who are educated by other means and are in the  
19 equivalent of the fifth through eleventh grade shall be apprised,  
20 together with the parent, custodial parent, or guardian of the  
21 student, of the opportunity for access to higher learning under the  
22 Oklahoma Higher Learning Access Program. The Oklahoma State Regents  
23 for Higher Education and the State Board of Education shall develop,  
24 promote, and coordinate a public awareness program to be utilized in

1 making students and parents aware of the Oklahoma Higher Learning  
2 Access Program.

3 B. On a form provided by the Oklahoma State Regents for Higher  
4 Education, every public school district shall designate at least one  
5 Oklahoma Higher Learning Access Program contact person, who shall be  
6 a counselor or teacher, at each public school site in this state in  
7 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.  
8 When requested by the State Regents, the State Board of Education  
9 shall assist the State Regents to ensure the designation of contact  
10 persons. Private schools shall also designate at least one school  
11 official as a contact person. For students who are educated by  
12 other means, a parent or guardian or other person approved by the  
13 State Regents shall be designated the contact person.

14 C. 1. Students who qualify on the basis of financial need  
15 according to subsection D or E of this section or who meet the  
16 eligibility qualification set forth in subparagraph d of paragraph 8  
17 of subsection A of Section 2603 of this title or in subparagraph a  
18 of paragraph 1 of subsection B of Section 2603 of this title no  
19 later than December 31 of their twelfth-grade year or prior to  
20 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on  
21 the basis of the standards and provisions promulgated by the  
22 Oklahoma State Regents for Higher Education shall be given the  
23 opportunity throughout the eighth-, ninth-, tenth-, and eleventh-  
24 grade years and no later than December 31 of the twelfth-grade year,

1 for students enrolled in a public or private school, or no later  
2 than the date of graduation or between the ages of thirteen (13)  
3 years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)  
4 years of age, for students who are educated by other means, to enter  
5 into participation in the program by agreeing to, throughout the  
6 remainder of their school years or educational program:

- 7 a. attend school or an educational program regularly and  
8 do homework regularly,
- 9 b. refrain from substance abuse,
- 10 c. refrain from commission of crimes or delinquent acts,
- 11 d. have school work and school records reviewed by  
12 mentors designated pursuant to the program,
- 13 e. provide information requested by the Oklahoma State  
14 Regents for Higher Education or the State Board of  
15 Education, and
- 16 f. participate in program activities.

17 2. Students who meet the eligibility qualification set forth in  
18 subparagraph a of paragraph 1 of subsection B of Section 2603 of  
19 this title after December 31 of their twelfth-grade year or after  
20 reaching the age of eighteen (18) shall be given the opportunity  
21 prior to reaching the age of twenty-one (21) to enter into  
22 participation in the program and shall execute an agreement with  
23 provisions as determined by the Oklahoma State Regents for Higher  
24 Education.

1        3. The contact person shall maintain the agreements, which  
2 shall be executed on forms provided by the Oklahoma State Regents  
3 for Higher Education and managed according to regulations  
4 promulgated by the Oklahoma State Regents for Higher Education, and  
5 the contact person shall monitor compliance of the student with the  
6 terms of the agreement. The Oklahoma State Regents for Higher  
7 Education are authorized to process student agreements and verify  
8 compliance with the agreements. Students failing to comply with the  
9 terms of the agreement shall not be eligible for the awards provided  
10 in Section 2604 of this title.

11        4. The Oklahoma State Regents for Higher Education may provide  
12 an exception to the age limits provided for in paragraphs 1 and 2 of  
13 this subsection pursuant to subsection L of this section.

14        5. Notwithstanding the provisions of Sections 5-132 and 5-132.1  
15 of this title, a student who is age twenty-one (21) or older shall  
16 not be eligible to enter into participation in the program.

17        D. Except as otherwise provided for in subsection E of this  
18 section and except for students who qualify pursuant to subsection B  
19 of Section 2603 of this title, a student shall not be found to be in  
20 financial need for purposes of the Oklahoma Higher Learning Access  
21 Program if:

22        1. Beginning with eighth-, ninth-, or tenth-grade students who  
23 are enrolled in a public or private school or students between the  
24 ages of thirteen (13) and fifteen (15) who are educated by other

1 means who apply for participation in the program in the 2017-2018  
2 school year, the federal adjusted gross income of the student's  
3 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

4 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade  
5 students who are enrolled in a public or private school or students  
6 between the ages of thirteen (13) and sixteen (16) who are educated  
7 by other means who apply for participation in the program in the  
8 2021-2022 school year, the federal adjusted gross income of the  
9 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per  
10 year;

11 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade  
12 students who are enrolled in a public or private school or students  
13 between the ages of thirteen (13) and sixteen (16) who are educated  
14 by other means who apply for participation in the program in the  
15 2022-2023 school year:

- 16 a. the federal adjusted gross income of the student's  
17 parent(s), who have two or fewer dependent children,  
18 exceeds Sixty Thousand Dollars (\$60,000.00) per year,  
19 b. the federal adjusted gross income of the student's  
20 parent(s), who have three or four dependent children,  
21 exceeds Seventy Thousand Dollars (\$70,000.00) per  
22 year, or  
23  
24

1           c.     the federal adjusted gross income of the student's  
2                 parent(s), who have five or more dependent children,  
3                 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4           4.   Beginning with eighth-, ninth-, tenth-, or eleventh-grade  
5 students or twelfth-grade students no later than December 31 of  
6 their twelfth-grade year who are enrolled in a public or private  
7 school or students between ~~the ages of~~ thirteen (13) years of age  
8 and ~~seventeen (17)~~ prior to reaching eighteen (18) years of age who  
9 are educated by other means who apply for participation in the  
10 program in the 2025-2026 school year:

11           a.   the federal adjusted gross income of the student's  
12                 parent(s), who have two or fewer dependent children,  
13                 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

14           b.   the federal adjusted gross income of the student's  
15                 parent(s), who have three or four dependent children,  
16                 exceeds Seventy Thousand Dollars (\$70,000.00) per  
17                 year, or

18           c.   the federal adjusted gross income of the student's  
19                 parent(s), who have five or more dependent children,  
20                 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

21           5.   Beginning with eighth-, ninth-, tenth-, or eleventh-grade  
22 students or twelfth-grade students no later than December 31 of  
23 their twelfth-grade year who are enrolled in a public or private  
24 school or students between thirteen (13) years of age and prior to

1 reaching eighteen (18) years of age who are educated by other means  
2 who apply for participation in the program in the 2027-2028 school  
3 year, the federal adjusted gross income of the student's parent(s)  
4 exceeds One Hundred Thousand Dollars (\$100,000.00) per year;

5     6. Beginning with the 2018-2019 academic year, prior to  
6 receiving any Oklahoma Higher Learning Access Program benefit award  
7 for any year during which the student is enrolled in an institution  
8 which is a member of The Oklahoma State System of Higher Education,  
9 a postsecondary vocational-technical program offered by a technology  
10 center school that meets the requirements to be eligible for federal  
11 student financial aid, or a private institution of higher learning  
12 located within this state and accredited pursuant to Section 4103 of  
13 this title, the federal adjusted gross income of the student's  
14 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per  
15 year.

16     The determination of financial qualification as set forth in  
17 this paragraph shall be based on the income of the student, not the  
18 income of the parent(s), if a student:

- 19         a. is determined to be independent of the student's  
20             parents for federal financial aid purposes,
- 21         b. was in the permanent custody of the Oklahoma  
22             Department of Human Services at the time the student  
23             enrolled in the program, or



1           c.     was in the court-ordered custody of a federally  
2                 recognized Indian tribe, as defined by the federal  
3                 Indian Child Welfare Act of 1978, at the time the  
4                 student enrolled in the program.

5           The provisions of this paragraph shall apply to any student who  
6     has received an Oklahoma Higher Learning Access Program benefit  
7     award after the 2017-2018 school year; and

8           ~~6.~~ 7.   The Oklahoma State Regents for Higher Education shall  
9     review the determination of financial qualification as set forth in  
10    paragraphs 1, 2, 3, and 4 of this subsection if the income from  
11    taxable and nontaxable sources of the student's parent(s) includes  
12    income received from nontaxable military benefits or income received  
13    from the federal Social Security Administration due to the death or  
14    disability of the student's parent(s). If the income from taxable  
15    and nontaxable sources of the student's parent(s), excluding income  
16    received from nontaxable military benefits or income received from  
17    the federal Social Security Administration due to the death or  
18    disability of the student's parent(s), does not exceed the  
19    limitations set forth by paragraphs 1, 2, 3, and 4 of this  
20    subsection, the student shall be determined to have met the  
21    financial qualification set forth in paragraphs 1, 2, 3, and 4 of  
22    this subsection.

23           E.   1.   A student who was adopted between birth and twelve (12)  
24    years of age while in the permanent custody of the Oklahoma

1 Department of Human Services, in the court-ordered custody of a  
2 ~~licensed~~ private nonprofit child-placing agency licensed by the  
3 Oklahoma Department of Human Services, or federally recognized  
4 Indian tribe, as defined by the federal Indian Child Welfare Act of  
5 1978, shall not be found to be in financial need for purposes of the  
6 Oklahoma Higher Learning Access Program if at the time the student  
7 begins postsecondary education and prior to receiving any Oklahoma  
8 Higher Learning Access Program benefit award, the federal adjusted  
9 gross income of the student's parent(s) exceeds One Hundred Fifty  
10 Thousand Dollars (\$150,000.00) per year. The provisions of this  
11 paragraph shall not apply to any student who has received an  
12 Oklahoma Higher Learning Access Program benefit award prior to the  
13 2012-2013 school year.

14 2. A student who was adopted between thirteen (13) and  
15 seventeen (17) years of age while in the permanent custody of the  
16 Oklahoma Department of Human Services, in the court-ordered custody  
17 of a ~~licensed~~ private nonprofit child-placing agency licensed by the  
18 Oklahoma Department of Human Services, or federally recognized  
19 Indian tribe, as defined by the federal Indian Child Welfare Act of  
20 1978, shall not be found to be in financial need for purposes of the  
21 Oklahoma Higher Learning Access Program if at the time the student  
22 begins postsecondary education and prior to receiving any Oklahoma  
23 Higher Learning Access Program benefit award, the federal adjusted  
24 gross income of the student's parent(s) exceeds Two Hundred Thousand

1 Dollars (\$200,000.00) per year. The provisions of this paragraph  
2 shall not apply to any student who has received an Oklahoma Higher  
3 Learning Access Program benefit award prior to the 2012-2013 school  
4 year.

5 3. ~~A student who was placed in the custody of the Department of~~  
6 ~~Human Services at any time during the eighth, ninth, tenth, or~~  
7 ~~eleventh grade and enrolls in the program no later than his or her~~  
8 ~~official date of high school graduation shall not be found to be in~~  
9 ~~financial need for purposes of the Oklahoma Higher Learning Access~~  
10 ~~Program if the federal adjusted gross income of the student exceeds~~  
11 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~ Except for students  
12 who qualify pursuant to subparagraph d of paragraph 8 of subsection  
13 A and subsection B of Section 2603 of this title, the determination  
14 of financial qualification as set forth in this subsection shall be  
15 based on the income of the student, not the income of the parent(s),  
16 if the student is determined to be independent of the student's  
17 parent(s) for federal financial aid purposes. A determination of  
18 financial qualification shall not be required for the student who  
19 meets the criteria set forth in this subsection at the time the  
20 student applies for participation in the program. The provisions of  
21 this paragraph shall not apply to any student who has received an  
22 Oklahoma Higher Learning Access Program benefit award prior to the  
23 2008-2009 school year.

24 ~~5.~~

- 1     4.     a.     A student who is the child of a certified ~~classroom~~  
2             teacher at the time the student applies for  
3             participation in the Oklahoma Higher Learning Access  
4             Program shall not be found to be in financial need for  
5             the purposes of the Oklahoma Higher Learning Access  
6             Program if, beginning with eighth-, ninth-, tenth-, or  
7             eleventh-grade students or twelfth-grade students no  
8             later than December 31 of their twelfth-grade year  
9             who are enrolled in a public or private school or  
10            students between thirteen (13) years of age and  
11            ~~seventeen (17)~~ prior to reaching eighteen (18) years  
12            of age who are educated by other means who apply for  
13            participation in the program in the 2025-2026 school  
14            year, the household income of the student's parent(s)  
15            is equal to or greater than seven hundred percent  
16            (700%) of the federal poverty level (FPL).
- 17            b.     Prior to receiving any Oklahoma Higher Learning Access  
18                    Program benefit award for any year during which the  
19                    student is enrolled in an institution that is a member  
20                    of The Oklahoma State System of Higher Education, a  
21                    postsecondary vocational-technical program offered by  
22                    a technology center school that meets the eligibility  
23                    requirements for federal student financial aid, or a  
24                    private institution of higher learning located within

1 this state and accredited pursuant to Section 4103 of  
2 this title, the household income of the parent(s) of a  
3 student who qualifies pursuant to this paragraph shall  
4 not be equal to or greater than seven hundred percent  
5 (700%) of the federal poverty level (FPL).

6 c. The Oklahoma State Regents for Higher Education shall  
7 verify the full-time employment status of the  
8 student's parent(s) and the current standard or  
9 alternative certification in a classroom subject of  
10 the parents prior to a student who qualifies pursuant  
11 to this paragraph receiving any Oklahoma Higher  
12 Learning Access Program benefit award.

13 d. For the purposes of this paragraph, ~~"certified~~  
14 ~~classroom teacher"~~ "certified teacher" means a  
15 ~~certified,~~

16 (1) full-time classroom teacher standard or  
17 alternatively certified as a teacher by the State  
18 Board of Education, teaches a classroom subject  
19 as determined by the State Regents, and who has  
20 been employed as a teacher in a public school  
21 district classroom in this state for a minimum of  
22 ten (10) years prior to his or her child applying  
23 for participation in the program,  
24

1           (2) full-time counselor, librarian, school nurse, or  
2           athletic trainer who is standard or alternatively  
3           certified as a teacher by the State Board of  
4           Education if employed by a public school district  
5           or a technology center school district in this  
6           state and otherwise fulfills the requirements of  
7           this paragraph, and

8           (3) full-time classroom teacher standard or  
9           alternatively certified as a teacher by the State  
10          Board of Education who is employed to teach K-12  
11          public school students at a technology center  
12          school district in this state if the teacher is  
13          employed to teach at least one fall and one  
14          spring semester class per academic year that  
15          provides free public education to at least one K-  
16          12 student and if the teacher otherwise fulfills  
17          the requirements of this paragraph.

18          e. The certified teacher ~~is~~ shall not be required to have  
19          been employed by the same public school district for  
20          ten (10) consecutive years and the ten (10) years of  
21          employment shall not be required to be consecutive.  
22          However, the ten (10) years of employment shall have  
23          occurred in the last twenty (20) years.

1        f.    Certified ~~classroom~~ teacher does not mean a certified  
2            teacher who is employed as a school district  
3            superintendent, principal, or any other position  
4            within the administration of a public school district  
5            when his or her child applies for participation in the  
6            program or prior to his or her child receiving any  
7            Oklahoma Higher Learning Access Program benefit award.

8        g.    Service as an emergency or provisional certified  
9            teacher shall not qualify for the employment  
10          requirements in this paragraph.

11        F.    The financial qualification of a student as set forth in  
12        subsections D and E of this section shall be certified by the  
13        contact person or by the Oklahoma State Regents for Higher Education  
14        on the agreement form provided by the Oklahoma State Regents for  
15        Higher Education. The form shall be retained in the permanent  
16        record of the student and a copy forwarded to the Oklahoma State  
17        Regents for Higher Education.

18        G.    Agreements shall be witnessed by the parent, custodial  
19        parent, or guardian of the student, who shall further agree to:

20            1.    Assist the student in achieving compliance with the  
21        agreements;

22            2.    Confer, when requested to do so, with the school contact  
23        person, other school personnel, and program mentors;

1        3. Provide information requested by the Oklahoma State Regents  
2 for Higher Education or the State Board of Education; and

3        4. Assist the student in completing forms and reports required  
4 for program participation, making applications to institutions and  
5 schools of higher learning, and filing applications for student  
6 grants and scholarships.

7        H. The Oklahoma State Regents for Higher Education shall  
8 promulgate rules for the determination of student compliance with  
9 agreements made pursuant to this section.

10       I. The Oklahoma State Regents for Higher Education shall  
11 designate personnel to coordinate tracking of program records for  
12 the years when students participating in the program are still in  
13 the schools or are being educated by other means, provide staff  
14 development for contact persons in the schools, and provide liaison  
15 with the State Board of Education and local organizations and  
16 individuals participating in the program.

17       J. The school district where an Oklahoma Higher Learning Access  
18 Program student is enrolled when the student begins participation in  
19 the program and any subsequent school district where the student  
20 enrolls shall forward information regarding participation by the  
21 student in the program to a school to which the student transfers  
22 upon the request of the school for the records of the student.

23       K. Students participating in the Oklahoma Higher Learning  
24 Access Program shall provide their Social Security number or their



1 student identification number used by their school to the Oklahoma  
2 State Regents for Higher Education. The State Regents shall keep  
3 the numbers confidential and use them only for administrative  
4 purposes.

5 L. The State Regents may provide an exception to the age limits  
6 provided for in paragraphs 1 and 2 of subsection C of this section  
7 to a student due to hardship circumstances and allow an application  
8 to the Oklahoma Higher Learning Access Program for twelfth-grade  
9 students enrolled in a public or private school and students who are  
10 educated by other means and are in the equivalent of twelfth grade.  
11 Provided, however, the exception due to hardship circumstances shall  
12 not apply to:

13 1. A student enrolled in a public or private school after the  
14 student's official date of high school graduation;

15 2. A student educated by other means who is age nineteen (19)  
16 or older; or

17 3. Any student who is age twenty-one (21) or older.

18 The Oklahoma State Regents for Higher Education shall promulgate  
19 rules to implement the provisions of this subsection.

20 SECTION 3. AMENDATORY 62 O.S. 2021, Section 34.87, as  
21 amended by Section 1, Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025,  
22 Section 34.87), is amended to read as follows:

23 Section 34.87. In order to ensure that the Oklahoma Higher  
24 Learning Access Program will be fully funded and all eligible and

1 qualifying students receive scholarships, the following procedures  
2 shall be observed:

3 1. Not later than November 1, 2007, and November 1 of each  
4 subsequent year, the Oklahoma State Regents for Higher Education  
5 shall estimate for the fiscal year which begins the following July  
6 1, the ~~amount~~ amounts of revenue they deem necessary to fund:

7 a. awards allowed pursuant to the Oklahoma Higher  
8 Learning Access Act, ~~for the fiscal year which begins~~  
9 ~~the following July 1 and provide such estimate to the~~  
10 ~~State Board of Equalization.~~ as the act existed at the  
11 beginning of the 2026-2027 school year, and

12 b. awards allowed pursuant to any expansion of the  
13 Oklahoma Higher Learning Access Act after the  
14 beginning of the 2026-2027 school year. The Oklahoma  
15 State Regents for Higher Education shall report the  
16 estimate calculated pursuant to subparagraph a of this  
17 paragraph to the State Board of Equalization, and the  
18 estimate calculated pursuant to subparagraph b of this  
19 paragraph to the Board of Investors of the Tobacco  
20 Settlement Endowment Trust Fund;

21 2. At its meeting in December 2007, and December of each  
22 subsequent year, held pursuant to the provisions of paragraph 1 of  
23 Section 23 of Article X of the Oklahoma Constitution, the State  
24 Board of Equalization shall determine the total amount of revenue

1 necessary to fund awards allowed pursuant to the Oklahoma Higher  
2 Learning Access Act for the fiscal year which begins the following  
3 July 1 and reflect such amount as it certifies amounts available for  
4 appropriation from the General Revenue Fund by the Legislature for  
5 such fiscal year and identify the amount to be authorized pursuant  
6 to paragraph 3 of this section; and

7       3. Notwithstanding any other provisions of law directing the  
8 apportionment of revenues, beginning with the fiscal year ending  
9 June 30, 2009, and for each subsequent fiscal year, the Director of  
10 the Office of Management and Enterprise Services shall transfer on a  
11 periodic basis as needed the amount of revenue calculated pursuant  
12 to subparagraph a of paragraph 1 of this section, to be deposited to  
13 the Oklahoma Higher Learning Access Trust Fund, provided that the  
14 total amount of such transfers in any fiscal year shall not exceed  
15 the amount authorized for transfer by applicable budget legislation  
16 for such fiscal year.

17       SECTION 4. Section 1 of this act shall become effective  
18 November 1, 2026.

19       SECTION 5. Sections 2 and 3 of this act shall become effective  
20 only upon the adoption by the People of Oklahoma of the State  
21 Question created pursuant to Enrolled HJR 1076 or HJR 1077 of the  
22 2nd Session of the 60th Oklahoma Legislature.

1 Passed the House of Representatives the 25th day of March, 2026.

2  
3 \_\_\_\_\_  
4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_ day of \_\_\_\_\_, 2026.

7  
8 \_\_\_\_\_  
9 Presiding Officer of the Senate